

19STCV44789 19STCV44789

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Case Number: 19STCV44789 Hearing Date: July 6, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ROBERT YU, et al.,

Plaintiffs,

vs.

jACK FAULKNER, et

al.,

Defendants.

Case No.:

19STCV44789

Hearing Date:

July 6, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT AND

CROSS-COMPLAINANT VIVIAN SUAREZ, AS THE REPRESENTATIVE OF THE ESTATE OF HENRY SUAREZ MOVES FOR MANDATORY DISMISSAL FOR FAILURE TO BRING CASE TO TRIAL WITHIN FIVE YEARS (C.C.P. §583.310-583.360)

AND RELATED CROSS-ACTIONS

Background

On December 11, 2019, Plaintiffs Robert Yu ("Yu") and Minghui Huang (jointly, "Plaintiffs") filed this action against a number of defendants, including Henry Suarez and Raymond Munro ("Munro").

Plaintiffs filed the operative first amended complaint ("FAC") on June 17, 2020, alleging causes of action for (1) breach of written contract for sale of real property, (2) violation of Civil Code sections 1102 et seq., (3) violation of Civil Code sections 2079 et seq., (4) negligence, (5) fraudulent concealment, (6) fraudulent misrepresentation, (7) negligent misrepresentation, (8) violation of Civil Code sections 896 et seq., (9) breach of third-party beneficiary contract, and (10) breach of fiduciary duties.

On September 18, 2020, Henry Suarez filed a cross-complaint against Munro and Vista Enterprise, Inc. ("Vista"), alleging causes of action for (1) negligence, (2) comparative indemnity, (3) contribution, and (4) declaratory relief.

On November 6, 2023, Munro filed a cross-complaint against a number of cross-defendants, alleging causes of action for (1) implied and equitable indemnity, (2) contribution, and (3) declaratory relief.

On June 17, 2024, a notice of death was filed for Henry Suarez, and on December 26, 2024, Plaintiffs named Doe 1 as Vivian Suarez, Personal Representative of the Estate of Henry J. Suarez ("Suarez").

Suarez now moves to dismiss the action. Defendant/Cross-Complainant Munro and Cross-Defendant Vista

filed a notice of joinder in the instant motion. Plaintiffs oppose. Suarez replied.

The Court notes that Plaintiffs filed an objection to Munro and Vista's notice of joinder, stating that "Defendant/Cross-Complainant Raymond Munro and Cross-Defendant Vista Enterprises, Inc. filed their Joinder untimely." (Plaintiffs' Obj. to Joinder, ¶ 1.) Code of Civil Procedure section 1005, subdivision (b), requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Plaintiffs state that "[h]ere, all moving papers, including the subject Joinder had to be filed and served no later than April 24, 2026, but instead, the Joinder was filed and served, via electronic service on May 12, 2026, prejudicing Plaintiffs' rights in connection with preparing its Opposition." (Plaintiffs' Obj. to Joinder, ¶ 1.) The Court agrees that the joinder was untimely. It was filed after Plaintiffs submitted their opposition, and it presents substantive arguments. Given this, the Court will not consider the joinder because the significant untimeliness prejudices Plaintiffs.

Previously, the Court held a hearing for the instant motion but continued the hearing stating that "[b]ecause the parties did not provide courtesy copies and because Plaintiff has recently learned that this Department had a temporary Judge during August 2023 through and part of January 2024, the Court is allowing Plaintiff to file and serve an amended opposition on or before June 3, 2026 with a courtesy copy delivered to Department 508 and Defendant may serve an amended reply on or before June 18, 2026." (Minute Order 5/20/26.)

Plaintiffs filed an amended opposition on June 3, 2026 and Suarez filed an amended reply on June 18, 2026.

Amended Requests
for Judicial Notice

Plaintiffs request
judicial notice of Exhibits 1-20.

Suarez requests judicial
notice of Exhibits 1-13.

The Court grants all the requests.

Legal Standard

Code of Civil Procedure section 583.310 provides, “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” Pursuant to Code of Civil Procedure section 583.360, “(a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.”

“In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed: (a) The jurisdiction of the court to try the action was suspended. (b) Prosecution or trial of the action was stayed or enjoined. (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.” ((Id., § 583.340.) “[T]he Legislature has specifically stated that for purposes of that section impossibility, impracticability or futility must be due to causes beyond a party’s control.” (Westinghouse Electric Corp. v. Superior Court (1983) 143 Cal.App.3d 95, 105 (Westinghouse).) Pursuant to Code of Civil Procedure section 583.330, “[t]he parties may extend the time within which an action must be brought to trial pursuant to this article by...written stipulation” and “[b]y oral agreement made in open court, if entered in the minutes of the court or a transcript is made.”

In addition, pursuant to Emergency Rule 10(a), “[n]otwithstanding any other law, including Code of Civil Procedure section 583.310, for all civil actions filed on or before April 6, 2020, the time in which to bring the action to trial is extended by six months for a total time of five years and six months.” (Cal. Rules of Court, Appen. 1, Emergency Rule 10(a).)

Discussion

As set forth above, the instant

action was filed on December 11, 2019. Suarez explains that “[c]ertain events did toll the five-year deadline, such as the Covid-19 Emergency Order and Mr. Suarez’ death. Yet, even in accounting for these tolling periods, the statutory deadline for Plaintiffs to bring this matter to trial was April 8, 2026. That deadline has passed, and trial is not scheduled to begin for another six months.” (Mot., 3:7-11.)

Suarez

asserts that “Plaintiffs commenced this action by filing their Complaint on December 11, 2019. (RJN, No. 1.) Thus, the original deadline to bring the matter to trial was December 11, 2024. (Code Civ. Proc., §583.310.) This deadline was extended on only two occasions.” (Mot., 5:7-9.) Suarez explains that under California’s Emergency Rule 10, the deadline was extended by six months, making the new deadline to bring the matter to trial June 11, 2025. Suarez next discusses Henry Suarez’s passing, and how between the date of his death on June 1, 2024, and the date “the Court signed the Order and substituted Mrs. Suarez as a defendant in her representative capacity of the Estate of Henry Suarez” on March 28, 2025, a total of 301 days passed. (Mot., 6:8-10.) Thus, Suarez contends that “[a]s a result of these two events, the deadline to bring the matter to trial was extended for a total of 483 days. The original trial deadline was December 11, 2024. Adding 483 days makes April 8, 2026 the true deadline by which Plaintiffs must have brought the case to trial. (RJN, No. 3; Powell Decl., at ¶ 8.) There are no other circumstances which legally extended the statutory deadline. As of the filing of this Motion, the statutory deadline for trial has already passed. Trial is not calendared to begin until October 14, 2026, another 6 months away.” (Mot., 6:15-21.) Suarez explains that they never agreed to extend the five-year deadline and asserts that “[b]ecause Plaintiffs failed to bring this action to trial within the proscribed statutory time, this Court has no discretion and must dismiss the Complaint.” (Mot., 8:17-18.)

Plaintiffs

explain a history of continuances, including that “[t]rial in this matter was originally scheduled for April 6, 2022, pursuant to the Case Management Conference held on February 3, 2021. The parties stipulated to continue trial on March 18, 2022, and again on September 13, 2022, resulting in the trial being continued to June 28, 2023.” (Opp., 3:8-10.) Plaintiffs’ counsel also explains that “[i]n 2023, Henry Suarez obtained trial continuances via ex parte applications filed on April 24, 2023 (granted April 25, 2023) and November 2, 2023 (granted November 14, 2023, alongside motions to compel that were later

denied in their entirety on February 8, 2024). The trial date was continued approximately 10 months in response to this ex parte application, and the January 2024 trial date was moved to November 2024.” (Guzman Decl., ¶¶ 6-7.) Then, “[o]n or around August 18, 2023, Defendant/Cross-Defendant Raymond Munro (‘Munro’) filed a Notice of Motion and Motion for Leave to File Cross-Complaint.” (Guzman Decl., ¶ 8.) However, Code of Civil Procedure section 583.360 “does not contemplate that time consumed by the delay caused by ordinary incidents of proceedings like disposition of demurrer, amendment of pleadings and the normal time of waiting for a place on the court’s calendar or securing a jury trial is to be excluded from a computation of the five-year period.” (O’Donnell, Pacific Emp. Ins. Co., Interveners v. City & County of San Francisco (1956) 147 Cal.App.2d 63, 65-66.) Accordingly, ex parte continuances are not sufficient to extend the deadline.

However,

Plaintiffs also explain that “Movant concedes the emergency rule extended the trial deadline in this action to June 11, 2025.” (Supp. Opp., 7:8-9.)

Next, “[t]he Court was on a temporary leave of absence from late August 2023 to early January 2024. (RFJN Ex. 20 at 6:6-9.) The temporary judge assigned to this department held no jury trials and only limited bench trials during that time.” (Supp. Opp., 3:23-25.) Thus, “[a]s a result, on August 10, 2023, the Court continued the trial date in this action on its own motion from September 27, 2023 to January 10, 2024 (105 days). Accordingly, the Court’s unavailability tolled the trial deadline to September 24, 2025.” (Supp. Opp., 7:22-24.)[1]

Counsel

explains that delays also came from the death of Henry Suarez (see Guzman Decl., ¶¶ 10-17), which is presently accounted for. However, prior to Henry Suarez’s death, “[o]n January 19, 2024, Suarez filed Doe amendments to his cross-complaint, naming Herron, Robles R.C., and Bardez as Roes 1-4.” (Supp. Opp., 4:9-10.) And, “[d]espite naming Herron, Robles, R.C. and Bardez as cross-defendants, Suarez and Munro failed to timely serve them within 60 days of filing their cross-complaints, as required by Cal. Rule of Court 3.110(b).” (Supp. Opp., 4:10-12.)

Plaintiffs

explain that the Court vacated the November 13, 2024 trial date, and “[o]n January 9, 2025, the Court once again continued the trial setting conference, noting that ‘no proof of service or responses from the cross-defendants Vista, Bardez,

R.C. Drilling, Robles, and Herron have been filed on the Suarez cross-complaint and Bardez and Herron on the Munro cross-complaint” (Supp. Opp., 4:24-26.) Plaintiff further explains that “[o]n April 11, 2025, Munro and Vista filed a Doe amendment, naming CHA Properties, Inc. (‘CHA’) as Doe 1.” (Supp. Opp., 5:20-21.) Further, “[o]n September 16, 2025, the Court ordered Munro to file and serve [a] request for default for the served Cross-Defendants and to file and serve a request for dismissal CHA by September 19, 2025.” (Supp. Opp., 6:3-4.)

At

the June 18, 2025 case management conference, Plaintiffs’ opposition explains that “all parties’ counsel (including Movant’s counsel) appeared. The Court proposed a trial date of October 14, 2026. The parties’ counsel had no objections to the trial date, and all counsel indicated the trial date was acceptable. (Guzman Decl. ¶ 20, RFJN Ex. 19.) Vivian Suarez filed a case management statement prior to the hearing, indicating that discovery had not yet been completed and she intended to conduct further written discovery and depositions on dates to be determined. (6/6/25 Case Management Statement at p. 4, ¶ 16.) Suarez requested and obtained entry of defaults against Robles, R.C., and Bardez on June 23, 2025.” (Supp. Opp., 5:24-6:2.)

Plaintiffs

contend that Westinghouse, *supra*, 143 Cal.App.3d at p. 106 is a parallel situation to here, thus necessitating denial of the motion to dismiss, “due to Suarez’s and Munro’s lengthy delays in joining the cross-defendants in this action, which resulted in multiple trial continuances.” (Opp., 7:27-28.) In Westinghouse, “the delay between the filing of the lawsuit in May 1977 and the final joining of all parties by the filing of cross-defendant Sprague’s answer to Procon/Signal’s cross-complaint in March 1982 was a delay of four years and ten months. Westinghouse itself stipulated as late as January 19, 1982, that Procon/Signal might file a cross-complaint against Westinghouse, Basler and Sprague. We do not consider such a delay to have been the responsibility of Travelers or an ‘ordinary incident’ of proceedings.” (Ibid.) The Court’s finding focused on factors outside of the Plaintiffs’ control in bringing the lawsuit to trial, finding that “impossibility, impracticability or futility must be due to causes beyond a party’s control.” (Id. at p. 105.) The Court of Appeal also explained that it “attach[ed] considerable significance to the trial court’s finding that there was no prejudice to any of the other parties involved in this litigation which resulted from the delay in bringing the matter to trial, notwithstanding the fact that prejudice is

presumed. [Citation.] Because that presumption is not declared by law to be conclusive, it may be rebutted. [Citation.] The facts of the instant case sustain the trial court's finding that the presumption of prejudice was rebutted. Travelers assured the regular progression of the litigation through the usual steps to the best of its ability. It cannot be responsible for the fact that the parties were engaged in ongoing discovery at the time the five years expired. Extending the time before trial to permit the other parties to file additional cross-complaints and to complete their discovery cannot be deemed to be prejudicial." (Id. at p. 110.)

Plaintiffs

contend that "[n]early all of the delay in bringing this matter to trial was caused by Defendants Saurez and Munoz. No delay is attributable to any 'unreasonable conduct' of Plaintiffs. The delay here is even longer than in Westinghouse: it took Saurez five years and six months between the filing of this lawsuit on December 11, 2019, and the 'final joining' of the cross-defendants to Saurez's cross-complaint on June 23, 2025, when all named cross-defendants had either filed a responsive pleading, had defaults entered against them, or were dismissed. As in Westinghouse, Suarez's substantial delay in joining the cross-defendants is not an 'ordinary incident' of proceedings and is not attributable to Plaintiffs. It is solely attributable to Suarez's own lack of diligence in bringing this case to trial." (Supp. Opp., 8:25-9:4.) Plaintiffs further assert that "[a]t a minimum, the statutory deadline should be tolled for 521 days from January 19, 2024, when Suarez filed his Doe amendments naming the additional cross-defendants, to June 23, 2025, when the "final joining" of the cross-defendants was completed. This would further extend the trial deadline to February 27, 2027." (Supp. Opp., 9:2-8.)

In

response, Suarez asserts that Westinghouse is inapposite, because "in that case, the Cross-Defendants appeared in the case and they, in turn, filed their own claims against other parties, which caused substantial delay in bringing the case to trial," but "[o]ur case is much different because none of the named Doe Defendants ever appeared in this case. There was never any delay in pleadings, discovery or scheduling caused by the presence of any other party." (Supp. Reply, 7:20-8:3.) Suarez further asserts that "Plaintiffs' Opposition is devoid of any statement or analysis of why the addition of Doe Defendants hampered their ability to prepare for and bring this case to trial in a timely manner, other than to argue the case was not yet 'at issue.' ... Filing an amended complaint or adding additional parties does not extend the

statutory deadline to bring the matter to trial.” (Supp. Reply, 6:22-27.)

The

Court agrees that filing an amended complaint or adding additional parties does not in and of itself extend the deadline to bring a matter to trial; however, the record here shows that the trial could not practicably be set in this matter until all the named cross-defendants either appeared, were dismissed or were defaulted. Cross-Complainants, not Plaintiffs, were the cause of the resulting trial delay as was the situation in the Westinghouse case. Severing Plaintiffs’ causes of action from those of the various cross-complainants in this construction dispute was not a practicable solution because it would have resulted in unnecessary duplication and judicial inefficiency. Consequently, pursuant to the Westinghouse case and the case cited by Plaintiff at the hearing of Pomona Federal Plaza v Investment Concepts, Inc.(1988) 203 Cal. App. 3d 217, 219, the Court finds that the time for bringing the case to trial was further extended.[2]

Plaintiffs assert that “[a]lternatively, even if the Court declines to exercise its discretion to toll the deadline due to Defendants’ delay in joining the cross-defendants, there is no dispute that the trial deadline was tolled following Henry Suarez’s death.” (Supp. Opp., 9:10-12.) “Here, defendant Henry Suarez died on June 1, 2024. As a direct result, the trial Court vacated the then-scheduled trial date, pending substitution of a personal representative. Vivian Suarez was substituted as a defendant on April 2, 2025, which was 305 days after Henry Suarez’s passing. When combined with the tolling due to COVID-19 and the Court’s unavailability, the trial deadline was extended to July 26, 2026. Even with this more limited tolling, the Motion is premature and must be denied.” (Supp. Opp., 9:17-21.)

There is no question that the death of Henry Suarez and the COVID-19 pandemic extended the five-year deadline. However, the parties contest whether Judge Beaudet’s temporary absence pauses the five-year deadline. Suarez contends that “this case is a Non-Jury Trial. Plaintiffs admit and concede in their Opposition that the Judge assigned to Department 50 in Judge Beaudet’s absence was conducting bench trials.

Opp. at p. 2 and 7. This case has been set as a non-jury trial since 2021 when the Court issued its Minute Order designating the case for a non-jury trial, and filed its Case Management Conference Order which specifically states that none of the parties requested a Jury Trial. RJN, No. 9 and 10. All the parties know this. Again in 2022, the Court noted this case was a non-jury

trial. RJN, No. 11. In August 2023, when Judge Beaudet continued trial, she noted she was continuing a non-jury trial. RJN., No. 12. ... There is no reason why this case could not have been heard by the temporary judge if it had been set for trial during that time period or reassigned to another department if the 5-year deadline was approaching.” (Supp. Reply, 5:3-17.) However, the Court notes that on both June 2, 2023 and August 18, 2023, Munro demanded a jury trial and posted jury fees. The Court’s docket also shows that the trial is scheduled as a jury trial. Because the Court was not holding jury trials during Judge Beaudet’s absence from August 2023 to January 2024, it would have been impossible to bring the case to trial. Accordingly, the Court finds it reasonable to toll the five-year deadline during this time.

The

Court notes that Plaintiffs also contend that the parties orally stipulated to a trial continuance at the June 18, 2025 Case Management Conference. Code of Civil Procedure section 583.330

states that “[t]he parties may extend the time within which an action must be brought to trial pursuant to this article... [b]y oral agreement made in open court, if entered in the minutes of the court or a transcript is made.” In the Court’s Minute Order from June 18, 2025, it states that “Jury Trial is scheduled for 10/14/26 at 01:30 PM in Department 50 at Stanley Mosk Courthouse.” (P-RJN, Ex. 19, at p. 2.) Plaintiffs contend that “at the June 18, 2025 case management conference, this Court proposed the trial date of October 14, 2026. The parties’ counsel (including Movant’s counsel) had no objections and all counsel indicated that date was acceptable;” thus, demonstrating the parties stipulated to a trial continuance. (Supp. Opp., 10:23-11:1.)

Plaintiffs

find *Nunn v. JPMorgan Chase Bank, N.A.* (2021) 64 Cal.App.5th 346, 356 instructive because, there, “[t]he judge proposed a trial date beyond the statutory deadline to accommodate the Chase Defendants, who requested additional time to conduct discovery and bring a summary judgment motion. The parties expressed their agreement to extend the trial deadline to this date when counsel for both sides ‘indicated’ on the record that they had ‘no objection’ to a January 13, 2020 trial date.” However, in response, Suarez explains that the case differs from the present situation because “[i]n that case, Defendant’s counsel rejected an earlier proposed trial date and thereafter expressly stated he had no objection to a later trial date which was beyond the five-year deadline. *Id.* The court held that taken together, defense counsel’s conduct constituted an agreement to extend the deadline to bring the case to trial. (*Id.*)

That circumstance is dramatically different than here, when counsel did not expressly accept any scheduling dates or waive the statutory deadline.” (Supp. Reply, 9:21-25; See *Nunn v. JPMorgan Chase Bank, N.A.*, supra, 64

Cal.App.5th at p. 356 [“The court suggested [trial for] November 2019, but [Defendants’ counsel] indicated November would be too early because defendants intended to file a summary judgment motion and needed to take the plaintiffs’ depositions before filing that motion. [¶] The court then proposed a trial for January 13, 2020. The lawyers both indicated to the court that they had no objection to the trial being set on January 13, 2020.”].) Suarez explains that “[m]erely acquiescing to a trial date is insufficient to avoid operation of the mandatory dismissal statute” (Supp. Reply, 9:26-27), because under *Central Mutual Ins. v. Executive Motor Sales* (1983) 143 Cal.App.3d 791, 796, the Court found that “[t]he presence of defendant’s counsel at the trial setting conference does not constitute a waiver of the requirements of section 583, subdivision (b). Mere attendance cannot be converted into an implied agreement to waive the statute.” The Court agrees that Plaintiffs did not present evidence demonstrating that Suarez waived the five-year dismissal statute by attending the June 18, 2025 case management conference. Further, from the Minute Order, there is no explanation or demonstration that the parties stipulated or agreed to the later date.

However, the Court does find that the five-year deadline has been tolled due to the death of Henrey Suarez and the time spent to appoint the representative of his estate (305 days), the COVID-19 extension (6 months), the Court’s unavailability for jury trials (119 days), and the delay due to the failure of Suarez to obtain an appearance by the cross-defendants on the Suarez cross-complaint or a dismissal or default until June 23, 2025 (82 days, i.e., from April 2, 2025 to June 23, 2025). The motion is premature because the five-year deadline is tolled until October 30, 2026. Accordingly, the Court denies the motion to dismiss under the five-year statute. The Court will discuss with the parties the advancement of the trial date to October 7, 2026 to be sure there is sufficient time to start the trial before the expiration of the five-year deadline. The Court will also discuss with the parties the dismissal or default of the remaining cross-defendants on the Munro cross-complaint.

Conclusion

Based on the foregoing, Suarez's
motion to dismiss is DENIED.

Suarez is ordered to
give notice of this Order.

DATED: July 6, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court

[1] As noted at the
hearing on June 30, 2026, the Court had already continued the trial date on
August 10, 2023, which occurred before the leave of absence, not because of it.
The continuance was on the Court's own motion as a result of its ruling without
prejudice on the motion of Munro to file a cross-complaint against
several parties after Suarez had filed a cross-complaint against Munro and
Vista. The conduct of Plaintiff was not the cause of the continuance of the
trial date.

[2] In fact, it appears that three
cross-defendants still have not responded to Munro's cross-complaint, been
dismissed or defaulted through no fault of Plaintiff; the Court intends to
address this deficiency with the parties after the hearing on the motion to
dismiss.